

2022 MAR 28 PM 1:57

LORI SKIPPER
900 9th Ave East
Palmetto, FL 34221

CLERK OF CIRCUIT COURT
MANATEE CO. FLORIDA

IN THE COUNTY COURT OF THE 12TH JUDICIAL CIRCUIT

IN AND FOR MANATEE COUNTY, FLORIDA

CIVIL DIVISION

**COLONIAL MANOR MHC HOLDINGS,
LLC**

**CHERYL PEAKE, in her personal and
separate capacity**

**JILL WRIGHT, in her personal and
separate capacity**

**PLAINTIFF(S)/CROSS COMPLAINT
DEFENDANT(S)**

LORI SKIPPER,

**DEFENDANT/CROSS COMPLAINT
PLAINTIFF**

CASE NUMBER: 2021CA4553

AMENDED PLAINTIFF(S)/CROSS COMPLAINT DEFENDANT(S)'S

COUNTER COMPLAINT

DEFINITIONS

- a. **COLONIAL MANOR MHC HOLDINGS, LLC**, refer to the Plaintiff(s)/Cross Complaint Defendant(s) which goes by such other common names as: **Colonial Manor**, The Park, **Kingsley**, **Kingsley Management** among other names.
- b. **ET AL** refer to DOES 1 through 20 who have been identified after early discovery was provided by various parties not involved and involved with this lawsuit.
- c. **DEFENDANT/CROSS COMPLAINT PLAINTIFF** refers to Lori Skipper who has filed a Cross Complaint and was granted leave of the Court to amend said counter complaint.

- d. **PLAINTIFF(S)/CROSS COMPLAINT DEFENDANT(S)** refers to the originator of this lawsuit a. COLONIAL MANOR MHC HOLDINGS, LLC who is also the respondent to the Cross Complaint.
- e. **WYOMING TERRACE** refers to the Plaintiff(s)/Cross Complaint Defendant Lori Skipper's employment place.

BACKGROUND

In December of 2020, the Plaintiff(s)/Cross Complaint Defendant(s) MS Skipper accepted a job as resident manager at COLONIAL MANOR MHC HOLDINGS, LLC, located at 900 9th Ave East, Palmetto, FL. She was placed in a company owned home on site 51 to fulfill the company obligation to have an On-Site Resident Manager and avoid having to hire a CAM licensed Property Manager, along with a salary. She held that position until late August 2021, at which time she accepted another position in New Mexico with the parent company of COLONIAL MANOR MHC HOLDINGS, LLC, and signed a contract with that park. She never had a valid employment agreement with Colonial Manor and challenges the Plaintiff(s)/Cross Complaint Defendant their agents, employees and attorneys to produce one.

On or about September 6, 2021, after leaving for the job in New Mexico at Wyoming Terrace, Because of local violence, the Plaintiff(s)/Cross Complaint Defendant(s) MS Lori Skipper, left this position for fear of her own safety and returned to Florida.

She received a copy of her employment agreement with Wyoming Terrace Manufactured Home Park, which is a separate entity from Colonial Manor, and after being approved by the park management for tenancy, purchased and occupied a home in the Colonial Mobile Home Park which is her current residence and has been since early September 2021.

Shortly thereafter she was approached by several residents and asked to participate in the Homeowners Association. She did so and was later elected President of the HOA after being nominated without asking and was voted in office by unanimous vote.

Shortly after joining and participating in the HOA, in or about late September the Plaintiff(s)/Cross Complaint Defendant MS Skipper was and is currently been subjected to several forms of harassment including selective rule enforcement, friends being harassed by the Park Managers, sent a letter by attorney Richard Lee of the law firm of Lutz, Bobo and Telfair purporting to represent COLONIAL MANOR MHC HOLDINGS, LLC, and insisting, through

unfounded and unproved allegations that she was in violation of this non-existent employment agreement. Said letter is attached to this Amended Counter Complaint and identified as **EXHIBIT A**.

The following month on November 4th, 2021 the Plaintiff(s)/Cross Complaint Defendant(s) initiated their lawsuit through another law firm by filing a Complaint which to date, the Plaintiff(s)/Cross Complaint Defendant(s) COLONIAL MANOR MHC HOLDINGS, LLC, their agents, employees or assigns have not verified or sworn to any allegations in their original or Amended documents and pleadings and was so admitted by MS Wilhelm during the proceeding that took place on February 14th, 2022. Per her own words: “*the complaint is not verified*” which by very definition means the Plaintiff(s)/Cross Complaint Defendant their counsel and law firm has not verified a single item in their filing thus they have made many allegations without evidence to support them nor do they have any intention of doing so since it would put them all in positions of committing perjury and suborning perjury, if they have not already done that.

The Defendant/Cross Complaint Plaintiff Lori Skipper is claiming damages for harassment, violation of her civil rights as to gender discrimination as defined in Florida 760.23 (2)” Discrimination in the sale or rental of housing and other prohibited practices.” It is unlawful to discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, national origin, sex, disability, familial status, or religion.

ARGUMENT

While Manatee County does not specifically address fair housing, the State of Florida and the United States does:

The **Federal Fair Housing Act** makes housing discrimination in the rental, sale, financing, or insuring of housing or housing-related services illegal if the discrimination is based on race, national origin, color, **sex or gender**, disability, religion, and familial status (presence of children under the age of 18). The U.S. Department of Housing and Urban Development (HUD) enforces the Fair Housing Act by investigating complaints from individuals and community organization across the nation. If HUD determines that housing discrimination has occurred, the U.S. Department of Justice, Civil Rights Division can bring the case to Federal Court

The Florida Fair Housing Act (Florida Statutes §760.20-760.37) mirrors the federal Fair Housing Act and is enforced by the Florida Commission on Human Relations (FCHR) which investigates housing discrimination complaints for the state of Florida. The Florida Fair Housing Act does not provide new protected traits. **However, additional protections may be available based on the county you live in.**

Going one step further, the US Supreme Court has made many rulings regarding harassment and discrimination based on gender:

Cleveland Bd. of Ed. v. LaFleur (1974) The Supreme Court found that Ohio public school mandatory maternity leave rules for pregnant teachers violate constitutional guarantees of due process.

Meritor Savings Bank v. Vinson (1986) The Court held that a claim of "hostile environment" sexual harassment is a form of sex discrimination that may be brought under Title VII of the Civil Rights Act of 1964.

Johnson v. Transportation Agency (1987) The Court decided that a county transportation agency appropriately took in account an employee's sex as one factor in determining whether she should be promoted.

Franklin v. Gwinnett County Public Schools (1992) The Court decided that an award of money damages is possible in a case brought to enforce Title IX of the Education Amendments of 1972, alleging sexual harassment and abuse by a teacher.

J.E.B. v. Alabama ex rel T.B., (1994) The Court held that prosecutors may not use peremptory challenges to dismiss jurors based on their sex.

United States v. Virginia (1996) The Court found that sex-based "separate but equal" military training facilities violated the Equal Protection Clause.

Faragher v. City of Boca Raton (1998) The Court decided that an employer may be liable for sexual discrimination caused by a supervisor, but liability depends on the reasonableness of the employer's conduct, as well as the reasonableness of the Plaintiff(s)/Cross Complaint Defendant(s) victim's conduct.

Oncale v. Sundowner Offshore Serv., Inc. (1998) The Supreme Court held that sex discrimination consisting of same-sex sexual harassment can form the basis for a valid claim under Title VII of the Civil Rights Act of 1964.

Davis v. Monroe County Board of Education (1999) The Court ruled that a lawsuit under Title IX of the Education Amendments of 1972 may be filed against a school board based on student-on-student sexual harassment if the board is deliberately indifferent to sexual harassment, has actual knowledge of the harassment, and the harassment is so serious that it deprives the victims of access to the educational opportunities or benefits provided by the school.

Jackson v. Birmingham Board of Education (2005): The Court held that an individual can bring a retaliation claim under Title IX of the Education Amendments of 1972 when they are retaliated against for Speaking up about sex discrimination.

Burlington Northern & Sante Fe Railway Co. v. White (2006): A company's indefinite suspension of an employee to avoid sexual harassment claims constituted unlawful retaliation under Title VII of the Civil Rights Act of 1964.

Bostock v. Clayton County (2020) The Court held that Title VII of the Civil Rights Act of 1964 forbids employment discrimination based on sexual orientation and gender identity. This ruling clearly states that sexual orientation and gender identity discrimination are sex discrimination for the purpose of the Act and are therefore illegal under federal law.

Sec. 804. [42 U.S.C. 3604] Discrimination in sale or rental of housing and other prohibited practices

CHAPTER 723 MOBILE HOME PARK LOT TENANCIES

723.011 (3.) Delivered the approved prospectus to the mobile home owner within 45 days of approval by the division. This paragraph does not preclude the finding that a lot rental agreement is invalid on other grounds and **does not limit any rights of a mobile home owner or preclude a mobile home owner from seeking any remedies allowed by this chapter, including a determination that the lot rental agreement or any part thereof is unreasonable.**

723.021cvcfv b b

723.022 Mobile home park owner's general obligations. —A mobile home park owner shall at all times:

- (1) Comply with the requirements of applicable building, housing, and health codes.
- (2) Maintain buildings and improvements in common areas in a good state of repair and maintenance and maintain the common areas in a good state of appearance, safety, and cleanliness.

- (3) Provide access to the common areas, including buildings and improvements thereto, at all reasonable times for the benefit of the park residents and their guests.
- (4) Maintain utility connections and systems for which the park owner is responsible in proper operating condition.
- (5) Comply with properly promulgated park rules and regulations and require other persons on the premises with his or her consent to comply therewith and conduct themselves in a manner that does not unreasonably disturb the park residents or constitute a breach of the peace.

723.0615 Retaliatory conduct.

(1) It is unlawful for a mobile home park owner to discriminatorily increase a homeowner's rent or discriminatorily decrease services to a home owner, or to bring or threaten to bring an action for possession or other civil action, primarily because the park owner is retaliating against the home owner. In order for the homeowner to raise the defense of retaliatory conduct, the home owner must have acted in good faith and not for any improper purposes, such as to harass or to cause unnecessary delay or for frivolous purpose or needless increase in the cost of litigation. Examples of conduct for which the park owner may not retaliate include, but are not limited to, situations where:

- (a) The homeowner has in good faith complained to a governmental agency charged with responsibility for enforcement of a building, housing, or health code of a suspected violation applicable to the mobile home park.
- (b) The homeowner has organized, encouraged, or participated in a homeowners' organization;
or
- (c) The homeowner has complained to the park owner for failure to comply with s. 723.022.

(2) Evidence of retaliatory conduct may be raised by the homeowner as a defense in any action brought against him or her for possession.

(3) In any event, this section does not apply if the park owner proves that the eviction is for good cause. Examples of such good cause include, but are not limited to, good faith actions for nonpayment of the lot rental amount, violation of the rental agreement or of park rules, or violation of the terms of this chapter.

723.032 Prohibited or unenforceable provisions in mobile home lot rental agreements.

(1) A mobile home lot rental agreement may provide a specific duration with regard to the amount of rental payments and other conditions of the tenancy, but the rental agreement shall neither provide for, nor be construed to provide for, the termination of any tenancy except as provided in s. 723.061.

(2) Any provision in the rental agreement is void and unenforceable to the extent that it attempts to waive or preclude the rights, remedies, or requirements set forth in this chapter or arising under law.

723.054 Right of mobile homeowners to peaceably assemble; right to communicate.

(1) No provision contained in any bylaw, rental agreement, regulation, or rule pertaining to a mobile home park shall infringe upon the right of the mobile homeowners to peaceably assemble in an open public meeting for any lawful purpose, at reasonable times and in a reasonable manner, in the common areas or recreational areas of the mobile home park.

(2) No provision contained in any bylaw, rental agreement, regulation, or rule pertaining to a mobile home park shall infringe upon the right of the mobile homeowners or tenants to communicate or assemble among themselves, at reasonable times and in a reasonable manner, for the purpose of discussing any problems relative to the mobile home park. Such discussions may

be held in the common areas or recreational areas of the park, including halls or centers, or in any resident's mobile home. In addition, the park owner or developer may not unreasonably restrict the use of any facility, including the use of utilities, when requested.

Amended Cross Complaint and request for relief

1. The Defendant/Cross Complaint Plaintiff, Lori Skipper denies all claims made by the Plaintiff(s)/Cross Complaint Defendant(s) in their original and Amended Complaints and files this Amendment based on order of the Court.
2. The Defendant/Cross Complaint Plaintiff Lori Skipper, at the request of the Plaintiff(s)/Cross Complaint Defendant(s)'s attorney has responded to the complaint of using ET AL in this matter by adding several respondents to this claim and cross complaint.
3. Additional and served Plaintiff(s)/Cross Complaint Defendant(s) are Cheryle Peake and Jill Wright.
4. All additional parties are over 21 years of age and live and work in Manatee County, Florida.
5. The Defendant/Cross Complaint Plaintiff Lori Skipper admits and recognized this Court as proper venue for this matter, however, may file a motion for leave to move this case to the Middle District Court of the United States in Tampa since there are significant infringements on Federal Law made by the Plaintiff(s)/Cross Complaint Defendant(s) .

FIRST CLAIM FOR RELIEF

**INTENTIONAL VIOLATION OF LEGAL RIGHTS TO ASSEMBLE, BE PROVIDED
STATUTORY NOTICE OF RULE CHANGES AND HARASSMENT
FLORIDA 723**

6. In their complaint and amended complaint, as well as various oral claims in Court, the Plaintiff(s)/Cross Complaint Defendant(s) have claimed numerous times that the Defendant/Cross Complaint Plaintiff, Lori Skipper has violated the terms of her employment agreement, yet they have not **PROVIDED ANY EVIDENCE TO THAT EFFECT**. Just because they say something happened, doesn't make it true and in this case the Plaintiff(s)/Cross Complaint Defendant(s) are, by and through their agents, attorneys and employees are playing fast and loose with the truth.

7. This purported employment agreement is supposedly dated on September 3, 2021, yet that was after she had left employment with the Plaintiff(s)/Cross Complaint Defendant Colonial Manor. The only employment agreement produced to date was with another park in New Mexico that is not a part of Colonial Manor. The owner of that park is not suing the Cross Complaint Defendant/Plaintiff, Lori Skipper and therefore, that employment agreement is not a valid argument in this case.

8. On or about October 11, 2021, the Defendant/Cross Complaint Plaintiff Lori Skipper was, without asking, nominated for and voted in by unanimous vote of the present homeowners as President of the HOA, an LLC organization formed under **Florida Statute Chapter 607, FLORIDA BUSINESS CORPORATION ACT**, inclusive.

9. While attempting to claim their actions are based on some yet to be produced employment agreement, the Plaintiff(s)/Cross Complaint Defendant(s) are simply trying to prevent the Defendant/Cross Complaint Plaintiff Lori Skipper, the residents of the park, and specific other parties to become aware of other legal actions the owner of the park has had to defend and to prevent the Defendant/Cross Complaint Plaintiff Lori Skipper from exercising her legal rights as outlined in participating in rent negotiations which are now headed to mediation with the expectation of the HOA filing suit against Colonial Manor, some of its employees and agents to get proper relief, all in violation of Defendant's /Cross Complaint Plaintiff's rights under **Florida 723.054 (1) and (2)**.

10. As a result of the actions of the Plaintiff(s)/Cross Complaint Defendant(s)'s actions in this matter and with their sole intent to retaliate, harass, and embarrass the Defendant/Cross Complaint Plaintiff Lori Skipper who has also had her legal rights violated under **Florida law 723.054** in whole.

11. As clearly stated in the Plaintiff(s)/Cross Complaint Defendant(s)'s letter **(EXHIBIT A)** attached hereto, their intent was to force the Defendant/Cross Complaint Plaintiff Lori Skipper into isolation in her own community which any reasonable person would recognize as a cause of harm to the Defendant/Cross Complaint Plaintiff Lori Skipper, by preventing her from engaging in her legally protected right to engage other home owners and participate as a member or officer of the HOA as defined and clearly stated in Florida law 723.054.

12. From the time the Defendant/Cross Complaint Plaintiff Lori Skipper moved into Colonial Manor, she has been subjected to harassment by the park Managers Cheryl Peake and Jill Wright who both have specifically caused harm to the Defendant/Cross Complaint Plaintiff Lori Skipper by enacting rules without the proper 90 day notice as promulgated in **Florida 723.037 (1) A park owner shall give written notice to each affected mobile home owner and the board of directors of the homeowners' association, if one has been formed, at least 90 days before any increase in lot rental amount or reduction in services or utilities provided by the park owner or change in rules and regulations. The notice shall identify all other affected homeowners, which may be by lot number, name, group, or phase. If the affected homeowners are not identified by name, the park owner shall make the names and addresses available upon request. The home owner's right to the 90-day notice may not be waived or precluded by a home owner, or the homeowners' committee, in an agreement with the park owner.**

13. Such unlawful rule changes include an arbitrary change to the park rule allowing access to the Clubhouse over New Years Eve after the Defendant/ Cross Complaint Plaintiff and several friends had properly signed up for use to host a New Years Eve party when 2 hours prior to the planned start of the party, the management locked the clubhouse and posted signs stating no alcohol allowed in common areas. The Park Owner, Nate Nelson was notified via phone and no remediate action was taken. This action was taken after considerable expense was made by the Defendant/Cross Complaint Plaintiff Lori Skipper and several friends. Prior to this posting, there was no rule precluding alcohol consumption on the premises. The excuse used by the management was a claim in a printed document stating that this was a policy of Kingsley Management, yet that same

evening another employee of Colonial Manor was in attendance of a New Year's Eve party hosted by another resident which alcoholic beverages were freely consumed and said consumption was admitted by that employee Chris Lamirande, the Park janitor, at the homeowner's meeting in January 2022. A copy of said posted document and sign are attached hereto and marked as **Exhibit B and Exhibit C**.

14. On a separate occasion in mid-February, the Park Managers, Cheryl Peake, and Jill Wright circulated in person, a copy of a letter purporting to be from an employee of the City of Palmetto claiming said ramp is out of code with the ADA. The ramp was built to provide exit ramp built onto a tenant's home who is wheelchair bound and had no method of escaping the home in the event of a catastrophic happening such as fire or natural disaster, to be out of compliance with the ADA. No such compliance rule is stated in the Americans with Disabilities act and a video taken from a security camera at one resident's home is available showing the message being left on his front porch by Cheryl Peake and Jill Wright. Said letter is attached and marked as **Exhibit D**.

15. Most recently, the Plaintiff(s)/Cross Complaint Defendant(s) Cheryl Peake and Jill Wright had posted a notice on Defendant's/Cross Complaint Plaintiff's Lori Skipper's home stating that she must remove weeds. This notice was accompanied by a photo of the neighbor's yard and when confronted with this information, MS Peake informed the Defendant/Cross Complaint Plaintiff Lori Skipper the photograph in question was being used as a means of example. Attached is the photograph and notice is marked as **Exhibit E**.

16. All of the above actions were taken by the Plaintiff's/Cross Complaint Defendant's employees and assigns against the Defendant/Cross Complaint Plaintiff Lori Skipper as a means of illegally constructing an eviction, forcing her from her owned home in the Park.

WHEREFORE: The Plaintiff(s)/Cross Complaint Defendant(s) herein has intentionally and maliciously damaged the Defendant/Cross Complaint Plaintiff Lori Skipper by engaging in a deliberate process of using the Court, Florida Statute violations and physically malicious conduct in a deliberate attempt to prevent the Defendant/Cross Complaint Plaintiff Lori Skipper from participating in a legal activity as out lined by Florida and Federal Statute cited

above and asks this Court to enjoin the Plaintiff(s)/Cross Complaint Defendant(s) from continuing such actions and further order the Plaintiff(s)/Cross Complaint Defendant(s) to pay a punitive sum of no less than \$50,000 to the Defendant/Cross Complaint Plaintiff Lori Skipper.

SECOND CLAIM FOR RELIEF

GENDER DISCRIMINATION IN HOUSING, VIOLATION OF Fair Housing Act

42 U.S.C. §§ 3601-19, and Florida 723

17. The Defendant/Cross Complaint Plaintiff Lori Skipper incorporates all previous claims and states the following Claim for relief:

18. Along with the previous actions, the Plaintiff(s)/Cross Complaint Defendant(s) through their employees, agents and assigns have attempted to negate relationships between friends of the Defendant/Cross Complaint Plaintiff Lori Skipper by sending out patently false accusations in communications to all or most all other park residents as demonstrated in a letter from Nate Nelson attached hereto and marked as **EXHIBIT F**, accusing George Yeske, a friend of the Defendant/ Cross Complaint Plaintiff Lori Skipper, of “reciting inaccurate facts”, all in an attempt to create a distance between the Defendant/Cross Complaint Plaintiff Lori Skipper and the rest of the community. The statements made by George Yeske were proven to be true once a copy of the call transcripts was produced as well as a recording of the initial introductory meeting was displayed at the HOA meeting in November.

19. In all, the letter (**EXHIBIT A**) also claims the Defendant/Cross Complaint Plaintiff Lori Skipper, had developed goodwill with renters at Colonial Manor, who by definition are not homeowners, and by developing goodwill with renters would be severely damaging to the community owners who seem to not want to have good will with the renter and have yet to demonstrate wanting any good will with homeowners since the homeowners aren’t mentioned in any of the letters sent out to the Defendant/Cross Complaint Plaintiff Lori Skipper.

20. While the Plaintiff(s)/Cross Complaint Defendant(s) make these *yet to be substantiated accusations* against the Defendant/Cross Complaint Plaintiff Lori Skipper, a

former male park manager, employed by Colonial Manor, named Joe Nichols, who is an active participant in HOA meetings and was President of the HOA constantly leaks information regarding the management policies of the park and procedures used by the company known as Kingsley Management which owns Colonial Manor. Mr. Nichols has never been sued, threatened by or retaliated against due to his actual actions while the Defendant/Cross Complaint Plaintiff Lori Skipper is being sued based on false claims alleging the same actions. In at least one case Mr. Nichols produced a copy of a resident contact list of Colonial Manor residents and further displayed copies of various eviction notices of at least 3 separate residents of the park and said notices contained not only the names of the individuals but also their addresses and other private information which he claimed to have taken from the office, something which has not been made available to the HOA by the park.

21. This discrimination is clearly intentional and even though Mr. Nichols was required to not enter the park office after his employment ended, he spends daily visits in the office with Cheryl Peake and Jill Wright. His visits have been documented on various security cameras throughout the park, park office and personally witnessed by other tenants of the park.

22. Regarding other instances of housing discrimination, not one single male resident, including Mr. Nichols has been sued for being a former employee of Colonial Manor and also becoming a member and officer of the HOA. In fact, not a single male member of the HOA has been told to leave the HOA by Kingsley Management or Colonial Manor for any reason, further demonstrating the vicious and unwarranted attacks directed towards Defendant/Cross Complaint Plaintiff Lori Skipper.

23. This bias can only be defined as gender based and has been going on since the Defendant/Cross Complaint Plaintiff Lori Skipper has returned from New Mexico and purchased a home in the park, Colonial Manor which she was approved prior to her purchase by the park management to purchase and occupy said home which Plaintiff's/Cross Complaint Defendant's lawyer claimed during a proceeding on February 14, 2022 that she didn't believe MS Skipper was a homeowner, which the Defendant/Cross Complaint Plaintiff Lori Skipper believes was a deliberate distortion and lie to the Court based on information

supplied by the Plaintiffs/Cross Complaint Defendants which demonstrates clearly no bounds to the level of discrimination the Plaintiffs/Cross Complaint Defendants are willing to cross in order to make their significantly weak and unverified case.

24. In other claims made against the Cross Complaint Defendant/ Plaintiff Lori Skipper, she has been accused of both possessing and distributing confidential homeowner information. While she admits she does have some phone numbers which were provided to her after her employment ended, of her neighbors, she does not have personal information of most other residents or their contact information, nor, unlike the current managers has she never provided phone numbers of park residents to outside parties. A resident of another park not related to Colonial Manor was given various park residents contact information by Cheryl Peake. This information is documented in a text message sent to George Yeske from said outside individual.

25. **Florida 723.003** is the specific law that enables residents of mobile home to live harassment free **Florida 723.003(1)** “Discrimination” or “discriminatory” means that a homeowner is being treated differently as to the rent charged, the services rendered, or an action for possession or other civil action being taken by the park owner, without a reasonable basis for the different treatment. Very clearly the Defendant/Cross Complaint Plaintiff Lori Skipper is being treated differently from other residents of the Park, Colonial Manor.

26. Based on the actions of the management of Colonial Manor, their behavior meets the very definition of **Florida 723.004 (20) “Unreasonable” means arbitrary, capricious, or inconsistent with this chapter.**

27. **42 U.S.C. §§ 3601-19 Title VIII of the Civil Rights Act of 1968 (Fair Housing Act)**, as amended, prohibits discrimination in the sale, rental, and financing of dwellings, and in other housing-related transactions, because of race, color, religion, sex (including gender identity and sexual orientation), familial status, national origin, and disability.

28. Again, based on the actions of the Plaintiff(s)/Cross Complaint Defendant(s) , their agents, employees, and assigns, the Defendant/Cross Complaint Plaintiff Lori Skipper has been subjected to violations of her Civil Rights as defined by previous named and other Federal and state statutes.

29. Each and every violation of the Defendant/Cross Complaint Plaintiff Lori Skipper’s rights are grounds for civil Court action, which is now taking place. Although

started by the Plaintiff(s)/Cross Complaint Defendant(s), this counter claim is a claim by the Defendant/Cross Complaint Plaintiff for damages under all available statutes which include both state and federal laws.

30. Sec. 804. [42 U.S.C. 3604] Discrimination in sale or rental of housing and other prohibited practices, **Sec. 804. [42 U.S.C. 3604]** (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, religion, sex, handicap, familial status, or national origin, or an intention to make any such preference, limitation, or discrimination.

31. In the harassing and discriminatory actions taken against the Defendant/ Cross Complaint Plaintiff Lori Skipper, the Plaintiff(s)/Cross Complaint Defendant(s), their agents, assigns and employees have violated the Defendant/ Cross Complaint Plaintiff Lori Skipper's Civil Rights in respect to Gender. Although the Plaintiff(s)/Cross Complaint Defendant(s)'s counsel has attempted to claim that the gender discrimination took place during employment, the Defendant/ Cross Complaint Plaintiff Lori Skipper, maintains that is a separate cause of action and has nothing to do with this claim of employment discrimination based on Gender.

32. Sec. 813. [42 U.S.C. 3613] Enforcement by Private Persons (a) Civil Action. (1) (A) An aggrieved person may commence a civil action in an appropriate United States district Court or State Court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this title, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach.

33. Based on the previous paragraph, the Defendant/ Cross Complaint Plaintiff Lori Skipper, is entitled to present this Complaint and be heard by this Court, therefore stating a claim for relief in this court in Manatee County at this time.

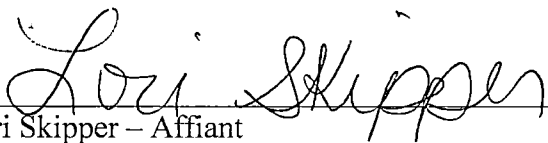
34. Previously, the Defendant/Cross Complaint Plaintiff Lori Skipper had asked the Court to take action in the filing of false and misleading information with this Court by the Plaintiff(s)/Cross Complaint Defendant(s) . Due to and based on information provided by and demanded by the Plaintiff(s)/Cross Complaint Defendant(s)'s Counsel, the Defendant/Cross Complaint Plaintiff Lori Skipper will withdraw that claim in Civil Court and file a complaint with the Manatee County District Attorney's office.

WHEREFORE, THE DEFENDANT/CROSS COMPLAINT PLAINTIFF LORI SKIPPER

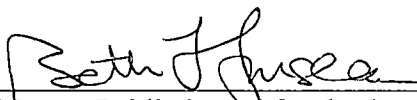
respectfully asks this Court to find this claim to be meritorious and not frivolous and further find the actions of the Plaintiff(s)/Cross Complaint Defendant(s) to be in violation of her rights under all applicable statutes and award her damages in the amount of \$250,000 and further enjoin the Plaintiff(s)/Cross Complaint Defendant(s) , their agents, assigns and employees from any further harassment and unwarranted adverse actions against her.

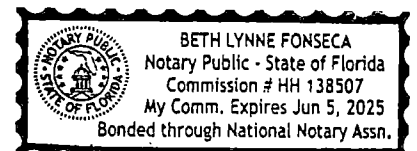
Affidavit of Lori Skipper

Under penalties of perjury, I Lori Skipper believe the forgoing statements are true and correct to the best of her knowledge.


Lori Skipper – Affiant

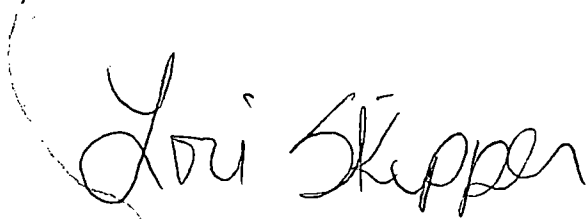
Subscribed and sworn before me this 28th day of March 2022.


Notary Public in and for the State of Florida.



My Commission Expires: _____

Respectfully the foregoing information is submitted this 28th Day of March, 2022 by :

A handwritten signature in black ink that reads "Lori Skipper". The signature is written in a cursive style with a large, looped "L" and a distinct "Skipper".

Lori Skipper, Plaintiff(s)/Cross Complaint Defendant(s)